Durably Sustainability Claims Risk Scan

Methodology summary — claim-risk screening · Last updated 4 September 2026

EmpCo / Directive (EU) 2024/825 ("Empowering Consumers for the Green Transition" Directive) • EU Forced Labour Regulation (Regulation (EU) 2024/3015)

This is a claims-risk screening tool, not a legal opinion, certification or assurance. It identifies sustainability wording that may be too broad or insufficiently evidenced, may fall within consumer-facing EmpCo rules, may create forced-labour-related assurance risk, or may be contradicted by relevant external public-source context.

1. Purpose and regulatory lenses

The scan applies exactly two regulatory lenses. Broader responsible-business frameworks (OECD Guidelines, UN Guiding Principles, ILO, GRI) are used only as supporting substantiation criteria for social claims, not as separate scored lenses.

Lens	How it is used in the scan
EmpCo / Directive (EU) 2024/825	Main green-claims lens, and also covers social characteristics: Art. 6(1)(b), as amended, brings "environmental or social characteristics" (wages, safety, human rights, equal treatment, gender equality, inclusion, diversity) within the same misleading-claims test. "EmpCo" stands for the Directive as regards **Emp**owering **Co**nsumers for the green transition (Directive (EU) 2024/825). Member States transpose by 27 March 2026; rules apply from 27 September 2026. Prioritises generic environmental claims, climate-neutrality/offsetting claims, self-declared sustainability labels, broad absolute wording, future environmental-performance claims, comparative claims, and legal compliance presented as a sustainability benefit.
EU Forced Labour Regulation / Regulation (EU) 2024/3015	Main forced-labour and supply-chain assurance lens. A product-market-access and customs-enforcement regime, not a claims law: Art. 1(3) confirms it creates no new due-diligence obligation of its own. Flags wording that may imply products, suppliers or value chains are free from forced labour, or that traceability, due diligence or import/export controls provide assurance beyond what is evidenced. Core prohibition and enforcement provisions apply from 14 December 2027 (a few governance articles already apply from 13 December 2024).
UCPD environmental-claim definition	Supports the EmpCo lens: checks whether text, images, symbols, labels, brand names or presentation imply positive, zero, reduced, comparative or improved environmental impact.
OECD Guidelines / UNGPs / ILO / GRI	Supporting substantiation framework for social and forced-labour claims: identification, prevention, mitigation and accounting for adverse impacts, checked for specificity, balance and evidence.

2. Potentially prohibited vs. problematic claims (EmpCo legal basis)

Every retained green or social claim is also classified by its EmpCo legal basis, shown in the report as a **Potentially Prohibited (Annex I)** or **Problematic (case-by-case)** label. This is a screening indicator, not a legal finding.

Classification	Meaning
Potentially Prohibited (Annex I)	Falls within the fixed list of practices Annex I of Directive (EU) 2024/825 adds to the UCPD blacklist — sustainability labels not based on a qualifying certification scheme or not established by public authorities, generic environmental claims that lack same-medium specification and recognised excellent environmental performance, offset-based claims that a specific **product** has a climate neutral/reduced/positive impact, and presenting a legal requirement as a distinguishing sustainability feature. Once EmpCo applies (27 September 2026), these practices are automatically unfair if the described conditions are met — no separate case-by-case materiality or consumer-impact test is required. A company- or operations-wide neutrality claim, or a generic claim that already carries same-medium specification, falls outside this fixed list and is assessed case-by-case instead.
Problematic (case-by-case)	Not on the Annex I list, so not automatically unfair — but not a free pass either. It may still be found misleading after an individual assessment under general UCPD unfair-commercial-practice rules (Art. 6/7, or Art. 6(2)(d) for future environmental-performance claims). Under UCPD Art. 12/12a (reinforced by EmpCo), an authority or court can require the company to substantiate the claim's factual accuracy, and the claim is treated as inaccurate for that assessment if adequate evidence is not supplied — in practice, once challenged, the burden falls on the company to produce evidence, not on the enforcer to disprove the claim. Whether it is ultimately found misleading still depends on context and likely consumer impact, and is not determined by this scan.

Automatic Very high score. When at least one retained green claim is classified **Potentially Prohibited (Annex I)**, the green score and the overall score are automatically raised to the Very high band (75/100 or higher), regardless of what the blended scoring formula in Section 6 would otherwise produce. A confirmed match against the fixed Annex I list is treated as categorically more severe than a case-by-case claim, so it is not diluted by averaging with claim wording, evidence-gap, external-context or sector-modifier components that were designed for the broader, non-blacklisted case. This rule only ever raises a score — a scan whose blended formula already reaches 75 or higher is unaffected. Social claims have no equivalent fixed Annex I list (assessed case-by-case only, per the Forced Labour Regulation lens in Section 1), so the social score is never raised by this rule.

3. What is retained as a claim signal

The scan does not operate as a simple keyword search. A word is retained only when the surrounding wording appears to make, imply or visually suggest an environmental or social performance claim. Neutral references such as *working with suppliers* or *backing local suppliers* are not retained unless they also imply assurance, compliance, certification, traceability, audits, due diligence or full supply-chain coverage. The website check follows relevant on-site links and, where linked directly from the company's own site, reads the text of PDF reports (e.g. an annual, CSR, ESG or sustainability report) in addition to web pages.

Retained signal type	Examples	Why it matters
Generic environmental claims	eco-friendly, green choice, sustainable product, conscious collection, planet friendly	Can fall under EmpCo restrictions when the claim is not clearly specified or substantiated on the same medium.
Climate and offsetting claims	carbon neutral, climate neutral, carbon compensated, net zero product, reduced climate impact	Product-level neutrality or reduced-impact claims based on offsetting are high-priority EmpCo risk indicators.
Labels, badges, icons	eco label, green badge, certified sustainable, leaf/planet/recycled icons used as trust marks	A sustainability label not based on a qualifying certification scheme or not established by public authorities can mislead.
Supplier / sourcing assurance	responsible sourcing, ethical sourcing, audited suppliers, traceable supply chain, all suppliers comply	May imply supply-chain control, audit quality or compliance that must be evidenced with scope, coverage, methodology and remediation.
Forced-labour assurance	forced-labour free, modern-slavery free, no forced labour, product traceability	Creates substantiation exposure now under general UCPD rules; traceability, risk-assessment, mitigation and remediation evidence may become relevant to enforcement under Regulation (EU) 2024/3015, which does not itself create a standalone due-diligence obligation (Art. 1(3)).
Aspirational / future social-performance wording	working towards a foundation for living wages, wish to build a world where human rights are respected, our ambition is...	Vague, forward-looking commitments on wages, human rights or working conditions with no baseline, timeline or achieved result. Treated as a relevant social-washing risk indicator on that basis alone — not as evidence of a specific academic finding about how common or dominant this pattern is in any sector.

4. Avoiding false positives on social and forced-labour claims

Words like *supplier*, *audit*, *human rights* or *compliant* appear constantly in ordinary business writing that is not a sustainability claim at all. Flagging every occurrence would bury genuine risk signals in noise, so before a social or forced-labour match is retained as a claim, it must pass all of the checks below. A reference that fails any of them is dropped silently — it never reaches the report and carries no score impact.

Check	What it filters out
Minimum context length	A match with fewer than roughly 35 characters of surrounding text is dropped — there is not enough context to judge whether it is actually a claim.
Neutral supplier references	Ordinary mentions such as *supporting local suppliers*, *our suppliers include…* or *become a supplier* are not retained on their own. They only count once the same passage also contains a genuine assurance or control term — audited, certified, traceable, forced labour, human rights, due diligence.
Requests vs. completed assurance	Wording that *asks* suppliers to do something (*we ask all our suppliers to sign our code*) is a governance step, not a compliance claim. It is only flagged if the same passage also shows the step has actually happened — a stated compliance rate, "have signed", "audited" — rather than treating every mention of "all suppliers" as an assurance claim.

Check	What it filters out
Aspirational / future commitments checked for real evidence	A forward-looking statement on wages, human rights or working conditions (*we are working towards…*, *our ambition is…*) is flagged only when there is **no** concrete process evidence — due diligence, a grievance mechanism, tracking — in the same or immediately following sentence. A commitment paired with real process detail is treated as a substantiated policy statement, not empty ambition. This check also excludes evidence-sounding text that is actually about an unrelated topic (e.g. a financial-audit sentence following a human-rights commitment).
Category-specific corroboration	Forced-labour, human-rights, workplace-safety and diversity/inclusion wording each require a specific additional strong phrase in the same passage (for example *traceability* alongside a forced-labour reference, or *living wage* / *worker rights* alongside a human-rights reference) — the bare trigger word by itself is never sufficient.
No claim retained → no inflated score	If nothing survives these checks, the social score reflects "No material problematic social claim retained" rather than defaulting to an assumed risk level.

These checks are intentionally conservative and applied before scoring, so they reduce noise at the cost of not being exhaustive: social or forced-labour wording that is genuinely misleading but phrased in an unusual way may not be caught. Reviewers should not read an absence of retained social claims as proof that a company's communication is free of social-washing risk — only that no wording matched the scan's retained-signal criteria.

5. Claim source and detected wording

Field in report	Meaning
Source	The website page, uploaded document or related checked page where the retained wording was found.
Exact retained wording	A short passage around the claim, normally one sentence. The scan avoids mixing long paragraphs with isolated words.
Trigger phrase(s)	The specific wording that made the passage relevant, for example carbon neutral, eco-friendly, responsible sourcing or forced-labour free.
Why it matters	A short explanation of the EmpCo, Forced Labour Regulation or substantiation risk.
Suggested improvement	A practical rewrite principle: specify scope, evidence, method, time period, conditions and limitations.

6. Score calculation

The scan produces three scores: **Green score**, **Social score** and **Global score**. Scores are **risk scores, not performance scores**. Higher scores indicate higher claim-risk exposure or stronger need for legal, communication or evidence review.

Component	Weight (primary driver)	What increases the score
Claim wording severity	Primary driver (50%)	Direct EmpCo blacklist indicators (generic claims, offsetting, labels, absolute wording) and forced-labour or supplier assurance wording, plus multiple retained material claim signals.
Evidence-gap risk	Important driver (22%)	Limited visible substantiation, missing scope, missing methodology, missing dates, missing verification, missing supplier coverage or weak remediation evidence.
Negative external stakeholder context	Context driver (20%)	Relevant criticism, allegations, enforcement, litigation, NGO/union/regulator concerns or negative press linked to the same claim area.
Sector and channel sensitivity	Modifier (8%)	Consumer-facing communication, high-risk supply chains, fashion, food, retail, energy, chemicals, logistics or other sectors with elevated green/social claim exposure.

The calculation is **intentionally conservative**. A single isolated wording signal normally creates a limited or medium concern. High or very high scores require a stronger combination of severity, evidence gaps, regulatory relevance and/or retained negative external stakeholder signals.

Score band	Interpretation
0 – 24 Low	No material problematic claim retained or only limited wording risk visible.

Score band	Interpretation
25 – 49 Medium	Some claim signals, wording risk or evidence gaps for review.
50 – 74 High	Strong wording risk, evidence gaps and/or negative external stakeholder signals require priority review.
75 – 100 Very high	Reached either by multiple severe claim signals with strong external or regulatory context, or automatically whenever a retained green claim is classified Potentially Prohibited (Annex I) — see Section 2.

7. External stakeholder signals

Status	Meaning and score treatment
Candidate	Automatically discovered result that has not passed all entity, ownership, negative-polarity and relevance checks. Not displayed as a retained signal and no score impact.
Retained	Passed automated direct-entity, external-source, negative-content and green/social relevance checks. May affect entity context, but requires manual verification before external use.
Verified	Manually checked for source status, entity link, date and claim relevance. This is the strongest status available in the scan output.
Excluded	Company-owned evidence, positive or neutral news, competitor-primary articles, duplicates or results with insufficient entity/relevance evidence. No score impact.

8. Coverage, confidence and source status

Source status	Meaning
Retrieved and analysed	Usable text from the source entered the claim analysis.
Retrieved and partially analysed	Only part of the extracted text entered the bounded analysis text.
Limited text extracted	The page or document returned too little usable text for a complete assessment, often because of JavaScript rendering or extraction limits.
Retrieved but not analysed	The source was fetched but did not enter the final analysis because the crawl or text budget was reached.
Failed / skipped	The source could not be accessed, was a duplicate, was low relevance or was outside the crawl budget. It does not support findings.

Confidence reflects source coverage, extraction quality, access failures, fallback use, claim-level signals and whether external search was performed. It is reported separately from claim risk. A low detected risk with limited coverage must not be read as proof that risky claims are absent.

9. Illustrative score example

Illustrative input	Risk contribution
Generic consumer-facing environmental claim	Raises claim-wording severity; exact contribution depends on the retained pattern and channel.
Missing scope, methodology and verification	Raises evidence-gap risk.
Retained regulator investigation in the same claim area	Raises external-context risk; duplicate articles about the same incident should be treated as one incident.
High-sensitivity sector and consumer channel	Applies a bounded sector/channel modifier.
Result	The weighted components are capped at 100 and mapped to the published Low / Medium / High / Very high bands. The example is illustrative, not a fixed point schedule for every claim.

Worked example (fully fictional, for illustration only): a claim scores 65/100 on claim-wording severity, 70/100 on evidence-gap risk, 30/100 on external context and 40/100 on the sector/channel modifier. Applying the published weights above: 65×50% + 70×22% + 30×20% + 40×8% = 32.5 + 15.4 + 6.0 + 3.2 = 57.1, rounded to **57/100** (High risk band). This shows how the four weighted components combine into the final score; it does not disclose the full internal point schedule used to score any individual claim, which varies by claim type, channel and retained evidence. If this claim were additionally classified Potentially Prohibited (Annex I), the automatic Very high rule from Section 2 would apply instead, and the score would be raised to at least 75/100 regardless of this blended calculation.

10. Limits of the scan

The scan is a structured screening and prioritisation tool. It does not determine whether greenwashing or social washing legally occurred. Final assessment requires human review of the complete communication, applicable law, product context, evidence files, claim approval process, language versions and jurisdiction-specific enforcement practice.

If a site blocks automated access or returns unusually little text on most pages checked, the report carries an explicit data-reliability warning. A low score under those conditions may reflect limited access to the site's content rather than a genuine absence of risky claims, and should be treated with caution.

The tool is most useful before publication, campaign launch, website update, packaging change, sustainability report publication or supplier-claim reuse. It helps teams identify claim passages that should be specified, evidenced, reformulated or escalated.